

The Tamil Nadu Ancient and Historical Monuments and Archaeological Sites and Remains Rules, 1971

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The Tamil Nadu Ancient and Historical Monuments and Archaeological Sites and Remains Rules, 1971

TAMILNADU

India

The Tamil Nadu Ancient and Historical Monuments and Archaeological Sites and Remains Rules, 1971

Act 638 of 1972

Published on 18 May 1971

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The Tamil Nadu Ancient and Historical Monuments and Archaeological Sites and Remains Rules, 1971

Published vide Notification G.O.Ms. 732, Education, dated 18th May, 1971, S.R.O. No. A-638 of 1972

In exercise of the powers conferred by section 38 of the Tamil Nadu Ancient and Historical Monuments and Archaeological Sites and Remains Act, 1966 (Tamil Nadu Act 25 of 1966), the Governor of Tamil Nadu hereby makes the following rules:-

Chapter I

Preliminary

1.

Short title and commencement.

- These rules may be called the Tamil Nadu Ancient and Historical Monuments and Archaeological Sites and Remains Rules, 1971.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the Tamil Nadu Ancient and Historical Monuments and Archaeological Sites and Remains Act, 1966 (Tamil Nadu Act 25 of 1966);

(b)

"construction" means the construction of any structure and includes additions to, or alterations of, an existing building;

(c)

"copying" together with its grammatical variations and cognate expressions means the preparation of copies by drawing or by photography or by mould or by squeezing and includes the preparation of a cinematographic film, with the aid of a hand camera, which is capable of taking films of not more than eight millimetres and which does not require the use of a stand or involve any special previous arrangement;

(d)

"filming" together with its grammatical variations and cognate expressions means the preparation of a cinematographic film with the aid of a camera, which is capable of taking films of more than eight millimetres and which requires the use of a stand or involves other special previous arrangement;

(e)

"Form" means a form set out in the Third Schedule;

(f)

"mining operation" means any operation for the purpose of searching for or obtaining minerals and includes quarrying, excavating, blasting and any operation of a like nature;

(g)

"prohibited area" or "regulated area" means an area near or adjoining a protected monument, which the Government have declared under rule 32 to be a prohibited area or, as the case may be, a regulated area, for the purposes of mining operation or construction or both;

(h)

"Schedule" means a Schedule to these rules; and

(i)

"section" means a section of the Act.

Chapter II

Access To Protected Monuments

3.

Protected monuments governed by agreement.

(1)

Access to protected monuments in respect of which an agreement has been entered into between the owner and the Government under section 5, or in respect of which an order has been made under section 8, shall be governed by the provisions of the agreement or the order, as the case may be, and nothing in rules 4, 5, 6 or 8 shall be construed as affecting any such agreement or order.

(2)

A copy of the relevant provisions of every such agreement or order shall be exhibited in a conspicuous part of the protected monument concerned.

4.

Parts of protected monuments not open.

- The Director may, by order, direct that any specified part of a protected monument shall not be open permanently or for a specified period, to any person.

5.

Protected monuments when kept open.

- The protected monuments specified in the First Schedule shall remain open during the hours specified against them in

that Schedule. Protected monuments which are not so specified and to which neither rule 3 nor rule 4 applies shall remain open from sunrise to sunset:

Provided that an Archaeological Officer may, by notice to be exhibited in a conspicuous part of the protected monuments, direct that such monument or part thereof shall be closed temporarily for such periods as may be specified in the notice.

6.

Entrance fee.

- No person above the age of fifteen years shall enter any protected monument or part thereof specified in the Second Schedule except on payment of a fee often paise:

Provided that the Director may, by order, direct that on such occasions and for such periods as may be specified in the order, no fee shall be charged for entry into such protected monument or part thereof.

7.

Exemption.

- Nothing in rule 4, rule 5 or rule 6 shall apply to an Archaeological Officer or to his representative subordinate or workman or to any Government servant on duty at a protected monument or any part thereof.

8.

Holding of meetings in protected monuments.

(1)

No protected monument shall be used for the purpose of holding any meeting, reception, party, conference or entertainment except under, and in accordance with, a permission in writing granted by the Government.

(a)

Nothing in sub-rule (1) shall apply to any meeting, reception, party, conference or entertainment, which is held in accordance with the established custom and usage of the monument:

Provided that if the monument comes within the purview of the Tamil Nadu Hindu Religious and Charitable Endowments Act, 1959 (Tamil Nadu Act 22 of 1959), then, the Deputy Commissioner, Hindu Religious and Charitable Endowments having jurisdiction over the monument, shall be the authority competent to decide what the established custom and usage is.

9.

Prohibition of certain acts within protected monuments.

- No person shall, within a protected monument,-

(a)

do any act which causes or is likely to cause damage or injury to any part of such monument; or

(b)

discharge any fire-arms; or

(c)

cook or consume food except in areas, if any, permitted to be used for that purpose; or

(d)

hawk or sell any goods or wares or canvass any customer for such goods or wares or display advertisement in any form or a show a visitor round such monument for monetary consideration, except under the authority of, or under and in accordance with conditions of, a licence granted by the Director; or

(e)

beg for alms; or

(f)

violate any practice, usage or custom applicable to, or observed in, the monument; or

(g)

bring for any purpose other than the maintenance of the monument-

(i)

any animal, or

(ii)

any vehicle except in areas reserved for the parking thereof.

10.

Penalty.

- Whoever-

- (i) unlawfully enters any protected monument or part thereof at a time when, under these rules, it is not to be kept open; or
- (ii) unlawfully enters any protected monument in respect of which an order has been made under rule 4 or a direction has been issued under rule 5; or
- (iii) contravenes any of the provisions of rules 6, 8 or 9, shall be punishable with fine which may extend to five hundred rupees.

11.

Grant of licence to hawk or sell goods, wares, etc. in protected monuments.

- (1) Licence to hawk or sell goods, wares, etc. may be obtained by applying to the Director in Form I.

- (2) On receipt of an application, the Director may grant a licence or, if he is satisfied, that the licence applied for shall not be granted, may, for reasons to be recorded in writing, refuse to grant a licence.

- (3) Every licence granted shall be in Form II and be subject to the following conditions, namely:-

- (a) The licence shall not be transferable and shall be valid for the period specified therein;
- (b) Nothing shall be done by the licensee or any member of his party, which has, or may have, the effect of exposing any part of the monument or attached lands or garden to the risk of damage; and
- (c) Any other condition, which the Director may specify in the licence.

- (4) The Director may suspend the licence, if in his opinion, the licensee does not adhere to the conditions laid down.

- (5) Any person aggrieved by an order of the Director, may file an appeal to the Government and the decision of the Government thereon shall be final.

12.

Grant of licence to guides to take the visitors around the protected monuments.

- (1) Licence to take visitors around the protected monuments may be obtained by application made to the Director in Form III.

- (2) On receipt of an application, the Director may grant a licence or if he is satisfied that the licence applied for shall not be granted, may, for reasons to be recorded in writing, refuse to grant a licence.

- (3) Every licence granted shall be in Form IV and be subject to the following conditions, namely:-

- (a) The licence shall not be transferable and shall be valid for the period specified therein;
- (b) Nothing shall be done by the licensee which has, or may have, the effect of exposing any part of the monument to risk or damage; and
- (c) No harassment or teasing is done by the licensee to any of the visitors by corrupt practices.

Chapter III

Construction and other Operations In Protected Areas

13.

Application for permission to construct within protected areas.

(1)
Every application for permission under sub-section (1) of section 18 of the Act shall be in Form V

(2)
Every such application shall be addressed to the Secretary to the Government in the Department dealing with the subject "ancient and historical monuments and archaeological sites and remains" and made at least three months before the date of commencement of the construction, operation or utilisation:

Provided that the Government may entertain an application, at any time before the commencement of the construction, operation or utilisation, if they are satisfied that the applicant had sufficient cause for not making the application in time.

14.
Licence required for excavation.

- Subject to the provisions of section 24 of the Act, no person other than an Archaeological Officer or an officer authorised by him in this behalf, shall make any excavation for archaeological purposes in any protected area except under, and in accordance with, the terms and conditions of licence granted under rule 16.

15.
Application for licence.

- Every application for a licence under rule 14 shall be in Form VI and be made to the Director at least three months before the proposed date of the commencement of the excavations:

Provided that the Director may entertain an application, at any time before the commencement of the excavation, if he is satisfied that the applicant had sufficient cause for not making the application in time.

16.
Grant or refusal of licence.

(1)
Subject to the provisions of section 23 of the Act, the Director may, on receipt of an application under rule 14, grant a licence in Form VII, if he is satisfied that, having regard to the status of the applicant, the competence of the person directing the excavation operations, the adequacy of the staff to be employed and other relevant factors:

Provided that no licence shall be granted unless the application is accompanied with a fee of Rs. 10 (Rupees ten only), which is not refundable under any circumstances:

Provided further that no licence shall be granted unless the applicant has furnished security of such amount, not exceeding Rs. 10,000 (ten thousand rupees) as the Director may, having regard to the circumstances of each case, require.

(2)
The Director may, by order for reasons to be recorded in writing, refuse to grant a licence in any particular case.

17.
Period of licence.

- Every licence under rule 16 shall be in force for such period not exceeding three years as may be specified in the licence:

Provided that the Director may, on application made to him at least one month before the expiry of a licence, extend its period by one year at a time, so that the aggregate period does not exceed five years.

18.
Cancellation of licence.

- The Director may, by order, cancel a licence granted under rule 16, if he is satisfied that the conduct of the excavation operations has not been satisfactory or are not in accordance with the conditions of the licence or if any further security demanded under rule 21 has not been deposited within the specified time:

Provided that no licence shall be cancelled unless the licensee has been given an opportunity to make his representations.

19.
Conditions of licence.

- Every licence under rule 16 shall be subject to the following conditions, namely:-

(a)
The licence shall not be transferable;

(b)

The licensee shall, at least fifteen days before the commencement of the excavation operations, give notice in writing of such operations to the Director, the District Collector and the owner of the land to be excavated if the licensee is not such owner;

(c)

The licensee shall produce the licence before the District Collector or the Superintendent of Police concerned or an Archaeological Officer, if so required;

(d)

The excavation operations shall be conducted under the supervision of the person directing the excavation operations named in the licence, who shall be present at the excavation operations for at least three-fourths of the total period of the operations;

(e)

The licensee shall not, without the permission of the Director, dismantle or disturb any structure found during the excavation operations and shall make adequate arrangements for the safety of such structure and of the excavated antiquities till they are taken charge of by the Director;

(f)

The licensee shall not subject any antiquities recovered during the excavation operations to any chemical or electrolytic process of cleaning without the written permission of the Director;

(g)

The Director or his representative may inspect the excavation operations or any antiquities recovered during the operations and make notes on or copy or film of the excavated structures and antiquities;

(h)

The licensee shall not discontinue the excavation operations unless he has given at least fifteen days' notice in writing to the Director;

(i)

At the conclusion of the excavation operations, the licensee shall give notice in writing to the owner of the land, if he is not such owner specifying the nature of the antiquities, if any, recovered during the operations;

(j)

The licensee shall, within three months of the completion of the excavation operations, submit to the Director a summary report of the results of the excavation, and where the operations are carried on for a period of more than three months, such report shall be submitted every quarter, and it shall be open to the Director to publish the report in his reports or reviews; and (k) The licensee shall, as soon as practicable, submit a report in Form VIII to the Government through the Director on the antiquities recovered during the excavation operations.

20.

Recovery from security.

- The Director may, by order, direct the deduction, from the security furnished by a licensee under rule 14,-

(a)

the value of any antiquities recovered during the excavation operations and lost or destroyed, while in the custody of the licensee; and

(b)

any compensation payable by the Government under section 26 of the Act to the owner or occupier of the land excavated by the licensee.

21.

Demand of further security.

- Where, during the currency of a licence, any amount has been recovered under rule 20, the Director may require the licensee, within such time as he may specify, to deposit such further sum as security as equivalent to the amount so recovered.

22.

Return of security.

- On the expiry or cancellation of a licence before its date of expiry, the security deposited by the licensee or the balance thereof remaining after deduction of any amount under rule 20 shall be returned to him.

23.

Publication of the result of excavation.

- Save as otherwise provided in rule 19, the Director shall not, without the consent of the licensee, publish the results of the excavation:

Provided that the Director may publish the results if the licensee has failed to publish the results within the period specified by the Director in this behalf.

24.

Retention of antiquities by licensee.

- The Government may, by order subject to such terms and conditions as may be specified, permit the licensee to retain such of the antiquities recovered during the excavation operations as may be specified therein:

Provided that human relics of historical importance, and antiquities which, in the opinion of the Government, are of importance, shall not be permitted to be retained by the licensee.

25.

Penalty.

- Whoever-

(i)

unlawfully undertakes any excavation for archaeological purposes in any protected area; or

(ii)

contravenes any of the conditions of a licence under rule 19 shall be punishable with fine which may extend to five thousand rupees.

Chapter IV

Excavation In Unprotected Areas

26.

Intimation to the Government.

- The person or institution intending to undertake or authorise any person to undertake any archaeological excavation or other like operations in any area, which is not a protected area shall intimate his/ its intention to the Government at least three months prior to the proposed date of the commencement of the excavation or operation specifying the following details, namely:-

(i)

name, location and other details of the site;

(ii)

nature of antiquities previously found;

(iii)

details of previous explorations, if any;

(iv)

purpose of excavation or operation;

(v)

purpose, extent of the excavation or operation (plan of the site in triplicate showing in red outline the extent of the proposed excavation or operation should be attached);

(vi)

proposed duration of the excavation or operation;

(vii)

amount of the proposed expenditure on the excavation or operation; and

(viii)

name and status of the person in charge of the excavation or operation.

27.

Approval by the Government.

- The Government may, after considering the proposal, approve it or advise the applicant to modify it or to abandon it altogether.

28.

Deputation of an Archaeological Officer.

- The Government may depute an Archaeological Officer to inspect the excavation or operation, while it is in progress and render such advice as he deems necessary.

Chapter V

Report on Excavated Antiquities by an Archaeological Officer

29.

Form of report by an Archaeological Officer.

- Where, as a result of an excavation made under section 20 or 21 of the Act, any antiquities are discovered, the Archaeological Officer shall, as soon as practicable, submit a report in Form IX to the Government through the Director on the antiquities recovered during the excavation.

Chapter VI

Moving of Antiquities From Certain Areas

30.

Application for moving antiquities.

- Every application under sub-section (2) of section 24 of the Act shall be in Form X and made at least three months before the proposed date of the moving:

Provided that the Director may entertain an application, at any time before moving the antiquities, if he is satisfied that the applicant had sufficient cause for not making the application in time.

31.

Grant or refusal of permission.

- On receipt of an application under rule 30, the Director may, after making such enquiry as he may deem necessary, grant permission in Form XI for the moving of all or any of the antiquities or, for reasons to be recorded, refuse such permission.

Chapter VII

Mining Operation and Construction near Protected Monuments

32.

Notice of intention to declare a prohibited or regulated area.

(1)

Before declaring an area near or adjoining a protected monument to be a prohibited area or a regulated area for the purposes of mining operation or for construction or for both, the Government shall, by notification, give one month's notice of their intention to do so and a copy of such notification shall be affixed in a conspicuous place near the area.

(2)

Every such notification shall specify the limits of the area which is to be so declared and shall also call for objections, if any, from interested person.

33.

Declaration of prohibited or regulated area.

- After the expiry of one month from the date of the notification under rule 30 and, after considering the objections, if any, received within the said period, the Government may declare, by notification, the area specified in the notification under rule 32 or any part of such area, to be a prohibited area or, as the case may be, a regulated area for the purposes of mining operation or for construction or for both.

34.

Effect of declaration of prohibited or regulated area.

- No person other than an Archaeological Officer shall undertake any mining operation or any construction,-

(a)

in a prohibited area, or

(b)

in a regulated area except under, and in accordance with, the terms and conditions of a licence granted by the Director.

35.

Application for licence.

- Every person intending to undertake any mining operation or any construction in a prohibited or regulated area shall apply to the Director in Form XII at least three months before the date of commencement of such operation or construction:

Provided that the Director may entertain an application, at any time before the construction or mining operation, if he is satisfied that the applicant had sufficient cause for not making the application in time.

36.

Grant or refusal of licence.

(1)

On receipt of an application under rule 35, the Director may grant a licence or, if he is satisfied that the licence asked for should not be granted, may, for reasons to be recorded, refuse to grant a licence.

(2)

Every licence granted under sub-rule (1) shall be in Form XIII and be subject to the following conditions, namely:-

(a)

The licence shall not be transferable;

(b)

It shall be valid for the period specified therein; and

(c)

Any other condition relating to the manner of carrying out the mining operation or the construction which the Director may specify in the licence for ensuring the safety and appearance of, and the maintenance of the approach and access to, the protected monument.

37.

Cancellation of licence.

- The Director may, by order, cancel a licence granted under rule 36, if he is satisfied that any of its conditions has been violated:

Provided that no licence shall be cancelled unless the licensee has been given an opportunity to make his representations.

38.

Removal of unauthorised buildings.

(1)

The Government may, by order, direct the owner or occupier of an unauthorised building in a prohibited area or in a regulated area of a building or part thereof, which has been constructed in contravention of any of the conditions of a licence granted under rule 36 to remove such building or part thereof within a period specified in that order.

(2)

If the owner or occupier refuses or fails to comply with an order made under sub-rule (1), the Government may direct the District Collector to cause the building or part thereof to be removed, and the owner or occupier shall be liable to pay the cost of such removal.

39.

Penalty.

- Whoever-

(i)

unlawfully undertakes any mining operation or construction in prohibited area or in a regulated area, or

(ii)

contravenes any of the conditions of a licence granted under rule 36, or

(iii)

fails or refuses to comply with an order made under sub-rule (2) of rule 36, shall be punishable with imprisonment for a term, which may extend to three months, or with fine, which may extend to Rs. 5,000 (five thousand rupees) or with both.

Chapter VIII

Copying and Filming of Protected Monuments

40.

Permission required for copying certain monuments.

- The Director may, by order, direct that no person other than an Archaeological Officer or an officer authorised by an Archaeological Officer in this behalf shall copy any specified monument or part thereof except under, and in accordance with, the terms and conditions of a permission in writing granted by an Archaeological Officer.

41.

Conditions of copying other monuments.

(1)

Any person may copy a protected monument in respect of which no order under rule 40 has been made.

(2)

Nothing in sub-rule (1) shall be construed as authorising any person other than an Archaeological Officer or an officer authorised by him in this behalf, while copying any such monument to,-

(a)

bring into, or use within, the precincts of such monuments a camera stand, stool, chair, table, large drawing board, easel or any such appliance; or

(b)

erect any scaffolding within such precincts; or

(c)

use within such precincts any artificial light other than a flash light synchronised with the exposure of a camera; or

(d)

apply any extraneous matter, such as water, oil, grease or any moulding material, on such monument or part thereof; or

(e)

prepare a direct tracing or mould or squeeze of such monument or part thereof, except under, and in accordance with, the terms and conditions of a permission in writing granted by an Archaeological Officer.

42.

Licence required for filming.

- No person other than an Archaeological Officer or an officer authorised by him in this behalf shall undertake any filming operation at a protected monument or part thereof, except under, and in accordance with, the terms and conditions of a licence granted under rule 44.

43.

Application for licence.

- Every person intending to undertake any filming operation at a protected monument shall apply to the Director in Form XIV at least three months before the proposed date of the commencement of such operation:

Provided that the Director may entertain an application, at any time before the filming operation is to begin if he is satisfied that the applicant had sufficient cause for not making the application in time.

44.

Grant or refusal of licence.

(1)

On receipt of an application under rule 43, the Director may grant a licence or, if he is satisfied that the licence asked for should not be granted, may for reasons to be recorded, refuse to grant a licence:

Provided that the Director shall not grant any licence to film the interior of any protected monument, that is to say, such part of any protected monument as is covered by a roof of any description, except when the film is for the purpose of education or of publishing the monument.

(2)

Every licence granted under sub-rule (1) shall be in Form XV and be subject to the following conditions, namely:-

(a)

the licence shall not be transferable and shall be valid for the period specified therein;

(b)

nothing shall be done by the licensee or any member of his party which has, or may have, the effect of exposing any part of the monument or attached lawn or garden to risk of damage;

(c)

the filming operation shall be restricted to that part of the monument in respect of which the licence has been granted;

(d)

no extraneous matter, such as, water, oil, grease or the like, shall be applied on any part of the monument;

(e)

the generating plant for electric power, wherever required, shall be placed away from the monument or the attached

lawn or garden;

(f)

the filming operation shall not obstruct or hamper the movement of persons who may lawfully be within the precincts of the movement; and

(g)

and other condition in which the Director may specify in the licence.

45.

Cancellation of licence.

- The Director may, by order, cancel a licence granted under rule 44, if he is satisfied that any of the conditions laid down therein has been violated:

Provided that no licence shall be cancelled unless the licensee has been given an opportunity to make his representations.

46.

Certain rules not affected.

- Nothing in rule 41 and no provision of a permission granted under rule 40 or of a licence granted under rule 44 shall affect the operation of rules 3, 4, 5, 6, 7, 8, 9 and 10.

47.

Penalty.

- Whoever copies or shoots films any protected monument or does any other act in contravention of any provision of this Chapter or of any permission or licence granted thereunder shall be punishable with fine, which may extend to Rs. 500 (five hundred rupees).

Chapter IX

Miscellaneous

48.

Appeal.

(1)

An appeal under sub-section (2) of section 9 or under sub-section (3) of section 24 of the Act shall be in Form XVI.

(2)

(a)

Any person aggrieved by any order or decision of the Director under any of these rules may appeal to the Government.

(b)

An appeal under clause (a) shall be in Form XVI.

(3)

The appeal referred to in sub-rule (1) or sub-rule (2) shall be preferred within one month from the date of the receipt by the appellant of the order appealed against:

Provided that the Government may, in their discretion, allow further time not exceeding one month for preferring any such appeal, if they are satisfied that the appellant had sufficient cause for not preferring the appeal in time.

(4)

Every appeal referred to in sub-rule (1) or sub-rule (2) shall be accompanied by a certified copy of the order or decision appealed against.

49.

Service of orders and notices.

- Every order or notice made or issued under the Act or these rules shall,-

(a)

in the case of any order or notice of a general nature or affecting a class of persons, be published in the Official Gazette;

(b)

in the case of any order or notice affecting a corporation or firm, be served in the manner provided, for the service of summons in section 2 of Order XXIX or, as the case may be, section 3 of Order XXX in the First Schedule to the Code of Civil Procedure, 1908 (Central Act V of 1908); and

(c)

in the case of any order or notice affecting any individual person, be served on such person,-

- (i)
by delivering or tendering it to the person concerned, or
- (ii)
if it cannot be so delivered or tendered, by delivering or tendering it to any adult male member of the family of such person or by affixing a copy thereof on the outer door or some conspicuous part of the premises in which that person is known to have last resided or carried on business or personally worked for gain, or

- (iii)
by sending it by registered post, acknowledgement due.

First Schedule

[Vide Rule 5]

Hours During Which Certain Monuments or Parts thereof will Remain Open

Serial Number and district

Locality

Name of the monument

Part of monument which shall remain open during
hours other than from sunrise to sunset

Hours of opening

Remarks

- (1)
(2)
(3)
(4)
(5)
(6)

1.

North Arcot

Kuzham-bandal village

Gangai-konda-chole-sarar temple

whole

From 7 a.m. to 12.00 noon and 3.00 p.m. to 6.00
p.m. or sunset whichever is earlier.

2.

Tirunelveli

Pancha-lankurichi

Palace remains of Veera-pandia Katta-bomman and
British Soldiers tombs.

whole

-do.-

3.

Coimbatore

Velayuthampalayam

Brahmi Inscriptions on the hill

whole

-do.-

4.

Sourh Arcot

Kilakadambur

Rudrabath Temple

whole

-do.-

Key will be available with the village Karnam.

5.

Tiruchirappalli

Kilaiyur

Twin temple

whole

-do.-

6.

Chingleput

Kancheepuram

Chokkeeswarar temple

whole

-do.-

Key will be available on request to the Office.

Second Schedule

[Vide Rule 60]

Monuments or Parts thereof Entry into which can be had only on Payment of Fee

Nil

Third Schedule

Form I

[Vide Rule 11(1)]

Application for Grant of Licence to Hawk or Sell Goods or Wares or Canvases Customers for Goods or Wares or Display Advertisement.

Name and address of applicant (in Block Letters).

Name of the monument of which the goods or wares are proposed to be sold or canvassed or advertisements displayed.

Locality

Taluk

District

Part of the monument proposed to be utilised.

Detailed descriptions of goods or wares proposed to be sold or canvassed or advertisements to be displayed.

Number of persons proposed to be utilised for the above said purpose.

Approximate duration and date of commencement.

I declare that the above informations are

correct. I also undertake to observe the provisions of the Tamil Nadu Ancient and Historical Monuments and Archaeological Sites and Remains Act, 1966 (Tamil Nadu Act 25 of 1966) and the rules made thereunder.

Station :

Date :

Signature of the applicant.

If the application is on behalf of an institution, the name thereof should be given.

If the application is on behalf of an institution, the signature should be that of the head of the institution.

Form II

[vide rule 11 (3)]

Licence to Hawk or Sell Goods or Wares or Canvas Customer for Goods or Wares or Display Advertisement in Protected Monuments.

Whereas, of has applied for a licence to hawk/ sell goods/ wares/ canvas/ customer for goods/ wares/ display advertisement at the protected monument known as located at Taluk District and has undertaken to observe the provisions of the Tamil Nadu Ancient and Historical Monuments and Archaeological Sites

and Remains Act, 1966 (Tamil Nadu Act 25 of 1966) and the rules made thereunder.

I, Director of Archaeology, do hereby grant licence under rule of the said rules to the said for selling goods/ wares, canvas customers for goods/ wares/ display advertisement.

The licence is granted subject to the provision of the said Act and rules and is valid for commencing with day of 19....

Station:

Date:

Seal of the Department of Archaeology of the Government of Tamil Nadu.

Signature of the Director of Archaeology.

Form III

[vide rule 12(1)]

Application for Grant of Licence to take Round Visitors around Protected Monuments

Name and address of applicant (In block letters).

Name of the monument proposed to be shown around.

Qualification and cultural activities of the applicant.

I declare that the above particulars are correct. I also undertake to observe the provisions of the Tamil Nadu Ancient and Historical Monuments and Archaeological Sites and Remains Act, 1966 (Tamil Nadu Act 25 of 1966) and the rules made thereunder.

Station :

Date :

Signature of the applicant.

Form IV

[vide rule 12(3)]

Licence To Take Round The Visitors Around The Protected Monuments.

Whereas,.....of.....has applied for a licence to take around the visitors at the protected monument known as located at Taluk District and has agreed to comply with the provisions of the Tamil Nadu Ancient and Historical Monuments and Archaeological Sites and Remains Act, 1966 (Tamil Nadu Act 25 of 1966) and rules made thereunder.

I, Director of Archaeology do hereby grant licence under rule of the said Rules to the saidto take around visitors.

The licence is granted subject to the provisions of the said Act and the rules framed thereunder and is valid for.....commencing with day of 19... day of.19.

Station:

Date:

Seal of the Department of Archaeology of the Government of Tamil Nadu.

Signature of the Director of Archeology.

Form V

[vide rule 13(1)]

Application For Permission For Construction/ Mining Operation Within A Protected Area.

1.

Name and address of the applicant1

2.

Name of the protected area within which construction/ mining operation is proposed.

Locality

Taluk

District

3.

Nature and details of the proposed construction/ mining operation in respect of which permission is sought

(In the case of construction, a site-plan in

triplicate showing in red outline the location of the building in relation to the protected area and the plan and elevation of the building should be attached; and the colour, external appearance and method of the screening of the building and the depth down to which the soil will be excavated for the appurtenances of the building should be specified.

In the case of mining operation, a site-plan in triplicate showing in red outline the extent of the operation in relation to the protected area should be attached; and details regarding the depth down to which the operation is to be carried out, the mode of the operation, the method of the muffling of sound, the kind and charge of blasting material and the depth and number of blast-holes to be fired at a time should be specified.)

4.

Purpose of the proposed construction/ mining operation.

5.

Approximate duration and date of commencement of the proposed construction/ mining operation.

1. If the application is on behalf of an institution, the name thereof should be given.

I declare that the above particulars are correct. I also undertake to observe the provisions of the Tamil Nadu Ancient and Historical Monuments and Archaeological Sites and Remains Act, 1966 (Tamil Nadu Act 25 of 1966) and the rules made thereunder.

Station;

Date:

Seal of the organization

Signature of the applicant*

Form VI

[vide rule 15]

Application for Licence to Excavate in a Protected Area.

1.

Name and address of applicant1.

2.

Name of the site,

Locality

Taluk

District

3.

Extent of the proposed excavation (a plan of the site in triplicate showing in red outline, the extent of the proposed excavation should be attached.)

4.

Approximate duration and date of commencement of proposed excavation.

5.

Approximate expenditure on the proposed excavation.

6.

Name and status of the Director of the proposed excavation.

7.

Details of photographic, surveying and other equipments available for the proposed excavation.

1. If the application is on behalf of an institution, the signature should be that of the head of that institution.

I declare that the above particulars are correct. I also undertake to observe the provisions of the Tamil Nadu Ancient and Historical Monuments and Archaeological Sites and Remains Act, 1966 (Tamil Nadu Act 25 of 1966) and the rules made thereunder.

Station:

Date:

Seal of the Institution

Signature of the applicant.

Form VII

[vide rule 16(1)]

Licence for Excavation in a Protected Area

Whereas,..... has applied for a licence for carrying out excavation operations in the protected area known as at Taluk District and has undertaken to observe the provisions of the Tamil Nadu Ancient and Historical Monuments and Archaeological Sites and Remains Act, 1966 (Tamil Nadu Act 25 of 1966), and the rules made thereunder and has further deposited the sum of Rs (Rupees only) as required by the rules.

I, Director of Archaeology, do hereby grant this licence under sub-rule (1) of rule 16 of the said rules to the said. to carry out excavation operations in the area indicated in red outline on the plan attached hereto.

The licence is granted subject to the provisions of the said Act and Rules and is further subject to the condition that.....of shall be the Director of the excavation.

The licence is not transferable. It shall be valid for commencing with the day.....of.....19.....to.....

Station:

Date:

Seal of the Department of Archeologyof the Government of Tamil Nadu

Signature of the Director of Archaeology.

Form VIII

[vide rule 19(k)]

Report on Antiquities Excavated in a Protected Area

Name of site : 1

Locality

Taluk

District

Report for the period from 19 to 19

Serial Number

Class of antiquities material

Number of antiquities

Approximate age

Remarks

Fragmentary

Complete

(1)

(2)

(3)

(4)

(5)

(6)

Station :

Date :

Signature of licensee 2.

1. If the application is on behalf of an institution, the name thereof should be given.

2. If the application is on behalf of an institution, the signature should be that of the head of that institution.

Form IX

[vide rule 29]

Report on Antiquities Excavated by an Archaeological Officer

Name of site:

Locality:

Taluk:

District:

Report for the period from 19 to 19

Number of antiquities

Serial Number

Class of antiquities material

Fragmentary

Complete

Approximate age

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

Station :

Date :

Signature of the applicant.

Form X

[vide rule 30]

Application for the Moving of Antiquities

1.

Name and address of applicant.

2.

Name of the place from which antiquities to be moved.

Locality

Taluk

District

3.

Description of antiquities proposed to be moved

(photographs showing details of the antiquities should be attached.)

4.

Approximate date of the moving.

5.

Purpose of the moving.

6.

Whether the antiquities or any of them are objects of worship.

I declare that the above particulars are correct.

Station :

Date :

Seal of the organization

Signature of the applicant.1

Form XI

[vide rule 31]

Permission for Moving of Antiquities

Whereas, of has applied for permission to move from Taluk District,.....

State to Taluk, District, State, the antiquities specified hereunder for proposes of..... and has agreed to comply with the provisions of the Tamil Nadu Ancient and Historical Monuments and Archaeological Sites and Remains Act, 1966 (Tamil Nadu Act 25 of 1966) and the Rules made thereunder.

I, Director of Archaeology do hereby grant permission under rule of the said Rules to the said to move the antiquities specified hereunder from Taluk, District, State to..... Taluk, District, State.

The permission is hereby granted subject to the provisions of the said Act and the Rules framed thereunder and is valid for commencing with day of 19.....

Specification of antiquities:

Station:

Date:

Form XII

[vide rule 35]

Application for License for Mining Operation/ Construction within a Prohibited or Regulated Area.

1.

Name and address of applicant.1

2.

Name of the monument near or adjoining which the prohibited or regulated area is situated:

Locality

Taluk

District

3.

Nature and details of the proposed mining operation construction in respect of which permission is sought:

In the case of construction, a site-plan in triplicate showing in red out-map the location of the building in relation to the monument and the prohibited or the regulated area and the plan and elevation of the building should be attached; and the colour, external appearance and method of the screening of the building and the depth down to which the soil will be excavated for the appurtenances of the buildings should be specified.)

(In the case of mining operation, a site-plan in triplicate showing in red outline the extent of the operation in relation to the monument and the prohibited or regulated area should be attached; and the details regarding the depth down to which the operation is to be carried out, the mode of the operation, the method of the muffing of sound, the kind and charge of blasting material and the depth and number of blast-holes to be fired at a time should be specified.

4.

Purpose of the proposed mining operation/ construction.

5.

Approximate duration and date of commencement of the proposed mining operation/ construction:

I declare that the above particulars are correct. I also undertake to observe the provisions of the Tamil Nadu Ancient and Historic Monuments and Archaeological Sites and Remains Act, 1966 (Tamil Nadu Act 25 of 1966) and the Rules made thereunder.

1. If the application is on behalf of an institution, the signature should be that of the head of that institution.
If the application is on behalf of an institution, the name thereof should be given.

Station:

Date:

Seal of the organization

Signature of the applicant.1

1. If the application is on behalf of an institution, the signature should be that of the head of that institution.

Form XIII

[vide rule 36(2)]

Licence for Mining Operation/ Construction within a Protected or Regulated Area

Whereas, of has applied for a licence for in the regulated or the prohibited area near or adjoining at taluk, District and has undertaken to observe the provisions of the Tamil Nadu Ancient and Historical Monuments and Archaeological Sites and Remains Act, 1966 (Tamil Nadu Act 25 of 1966) and the rule made thereunder.

I,Director of Archaeology, do hereby grant this licence under sub-rule (2) of rule 34 of the said rules to the said..... in the area indicated in red outline on the plan attached hereto.

The licence is granted subject to the provisions of the said Act and rules and is further subject to the following conditions, namely:-

The licence is not transferable. It shall be valid for commencing withday of.....19.....

Station:

Seal of the Department of Archaeology of the

Government of Tamil Nadu

Signature of the Director of Archaeology.

Date:

Form XIV

[vide rule 42]

Application for Licence of Filming Operation at a Protected Monument

1.

Name and address of applicant.1

2.

Name of the monument at which the proposed filming operation is to be carried out.

Locality

Taluk

District

3.

Part of the monument proposed to be filmed.

4.

Nature and purpose of the proposed filming operation and the context in which the monument is proposed to be filmed (relevant extract of the script should be attached in triplicate and details of the scenes to be filmed should be furnished in triplicate.)

5.

Number of persons in the cast.

6.

Approximate duration and date of commencement or proposed filming operation:

I declare that the above particulars are

correct. I also undertake to observe the provisions of the Tamil Nadu Ancient and Historical Monuments and Archaeological Sites

and Remains Act, 1966 (Tamil Nadu Act 25 of 1966) and the rules made thereunder.

1. If the application is on behalf of an institution, the signature should be that of the head of that institution.

Station:

Date :

Seal of the organization

Signature of the applicant.

Form XV

[vide rule 44(2)]

Licence for Filming Operation at a Protected Monument

Whereas, of has applied for a licence for filming operation at the protected monument known as located at taluk district and has undertaken to observe the provisions of the Tamil Nadu Ancient and Historical Monuments and Archaeological Sites and Remains Act, 1966 and the rules made thereunder.

I, Director of Archaeology do hereby grant this licence under rule 44(2) of the said rules to the said for carrying out of filming operation, as per script and details of scenes attached hereto in the following parts of the monuments, namely:-

The licence is granted, subject to the provisions of the said Act and rules and is further subject to the following conditions, namely:-

The licence is not transferable. It shall be valid for commencing with day of 19.....

Station:

Seal of the Department of Archaeology of the

Government of Tamil Nadu

Signature of the Director of Archaeology.

Date:

Form XVI

[vide rule 48(1)]

Form of Appeal

1. Name and address of the applicant, (in Block letters)
2. Date of application for licence.
3. Purpose for which licence was sought for.
4. No and date of order of the Director of Archaeology.
5. Points for appeal.

Station:

Date:

Signature of the applicant

Related AI tags, queries and research notes

Translation